

AI-Assisted Bid Document Extraction Report

1. Plain-English Bid Summary

The City of Lubbock is soliciting competitive sealed bids (ITB 26-19482-KM) for a Roof Improvement Project at the Godeke Library Building. Bidders must furnish all labor, materials, equipment, and services necessary to construct the roof improvements in full accordance with the City's plans, specifications, General Conditions, and other contract documents. The project is a public construction/public works contract with an estimated budget of \$275,000 (p.2 §1.10). Bids are due to the Director of Purchasing and Contract Management by 2:00 PM on March 19, 2026, and will be publicly opened and read, including via Zoom (p.1). The successful bidder will receive a Notice to Proceed approximately 30 days after City Council award (p.2 §1.8) and must substantially complete construction within 60 consecutive calendar days from the Notice to Proceed (p.4 §2.1). The contract is governed by Texas law, subject to prevailing wage requirements, strict insurance and workers' compensation obligations, non-discrimination rules, and anti-lobbying, ethics, and conflict-of-interest regulations. The City reserves broad discretion to reject bids, evaluate bidder qualifications, and enforce warranties, safety, and quality standards across the project.

2. Project Scope

High-level project description - Project: Roof Improvement Project for Godeke Library Building (construction/public works) (p.1). - Estimated project budget: \$275,000 (p.2 §1.10). - Contractor must furnish all labor, materials, tools, equipment, and services to complete the roof improvements in accordance with all contract documents (p.1, p.9 §17.1, p.8 §12.1–12.2). Performance and quality obligations (general construction scope conditions) - Substantial completion of all work within 60 consecutive calendar days from the date specified in the Notice to Proceed (p.4 §2.1). - Daily prosecution of work: Contractor must prosecute the work every business day after commencement until completion, except for written City-approved time off or inclement weather days (p.4 §2.3). - Quality of work: All materials and workmanship must be of "the best quality and grade" and at least meet the minimum standards in the specifications; the Contractor is fully responsible regardless of presence or absence of City representatives (p.9 §17.1). - Protection of work: Contractor must care for and protect all materials, equipment, tools, facilities, means of construction, and all parts of the work (whether or not paid for) until the City issues its certificate of completion/acceptance (p.9 §19.1; p.10 §22.1). - Plans/specifications: Detailed technical scope, drawings, and specifications are contained in the plans and specifications available from the City or via Bonfire (p.2 §1.11). If too bulky to bind, they are incorporated by reference and remain part of the contract (p.13 §29.2). - Contractor is responsible for obtaining, distributing, and using the plans and specifications for all suppliers and subcontractors (p.9 §18.1; p.13 §32.1). Site conditions and investigations - Bidders must inspect the site and fully acquaint themselves with local conditions that may affect the work; bids are deemed to reflect such investigation (p.2 §1.12; p.6 §6.1–6.2). - Before bidding, bidders must make all investigations and examinations necessary to ascertain conditions and requirements affecting performance; failure to do so does not relieve them of obligations (p.6 §6.2). Utilities, safety, explosives, and local representative (execution-related scope) - Underground utilities: Work must be conducted with due care to avoid damage to underground pipelines, utility lines, conduits, and other subsurface structures. The City may provide information on lines it knows about, but this does not relieve the Contractor of responsibility. Any damage must be promptly repaired at Contractor's expense to the City's satisfaction (p.10 §21.1). - Site safety: Contractor must furnish and maintain barricades, fences, lights, danger signals, and other precautionary measures to protect persons, property, and the work, at its own expense, until final acceptance; damage to the work due to inadequate protection must be repaired at Contractor's cost (p.10

§22.1). - Explosives (if needed for the work): May not be used without prior written permission from the City; no on-site storage is allowed. Contractor assumes full responsibility for all direct and indirect damage from blasting, must use utmost care and industry standard safe methods, and must give advance notice to all affected utilities. Notice does not limit Contractor's liability (p.10 §§23.1–23.3). - Local representative: Successful bidder must maintain a responsible local representative, available at all times while work is in progress, and provide name, address, and phone to the City (p.10 §24.1). Warranties and guarantees - General one-year guarantee: Contractor must provide a written guarantee prior to final acceptance that all materials and workmanship are free from defects and agree to remedy any defects and pay for any and all resulting damages that appear within one year from final acceptance, at no cost to the City (p.4 §3.1). - Hardware/software/firmware warranty: For any hardware, software, or firmware products and related services delivered under the Contract, Contractor separately warrants that calculations will be recognized and accommodated and will not cause failures (p.5 §3.2). These obligations extend to products/services provided by subcontractors and third parties and are not subject to disclaimer or limitation of liability elsewhere in the Contract (p.5 §§3.3–3.4). The City may require Contractor to demonstrate procedures used to comply (p.5 §3.2). Labor and wage context - This is a public works project subject to Texas Government Code Chapter 2258; all workers must be paid not less than the prevailing wage rates specified in the contract documents for their classifications, including holiday and overtime rates (p.2 §3; p.11 §26.1; p.14 §§34.1–34.2; p.12 wage provision). Note: Detailed roof system type, materials, warranty requirements specific to the roof, tie-in details, and drawings are not included in these excerpts and must be obtained from the plans and specifications referenced in the ITB and General Conditions.

3. Key Dates

- Bid due date and public opening: 2:00 PM, March 19, 2026; bids must be received by the Director of Purchasing and Contract Management on or before this time. Late bids will be rejected unopened (p.1).
- Non-mandatory pre-bid Zoom meeting: March 11, 2026 at 10:00 a.m. (p.2 §§2.9–2.11).
- Bidder inquiries / clarification deadline: All written requests for information, clarification, or to report restrictive language or discrepancies must be received no later than five (5) calendar days before the bid closing date (p.4 §§1.1–1.2; p.6 §§5.2, 6.3).
- Recommended upload timing (if electronic): Bidders are advised to allow sufficient time for Bonfire uploads and are strongly urged to upload at least 24 hours before the response deadline (p.2 §1.9; p.6 §5.1).
- Notice to Proceed: To be issued approximately 30 days following award of the contract by the Lubbock City Council (p.2 §1.8).
- Substantial completion: All construction must be substantially complete within 60 consecutive calendar days from the date of the Notice to Proceed (p.4 §2.1).
- Weekend/holiday work requiring inspector: Contractor must notify the Owner's Representative not less than three full working days before any intended Sunday or holiday work that requires an inspector and must obtain written permission (p.11 §26.1.3).
- Pre-award qualification information: City may request experience/financial/equipment information after bids are opened and before contract award (p.9 §19.1; p.13 §31.1–31.2).
- Workers' compensation coverage: Certificates of coverage must be provided before work begins and renewed before coverage expires; certificates must be retained for the project duration plus one year (p.15 checklist items (2)–(5); p.16).

- Insurance cancellation/change: Insurance policies must provide at least ten (10) days' advance written notice to the City before cancellation or material change (p.10 §25.1; p.17).
- Employee wage payment frequency: Employees must be paid not less often than once each week (p.11 §27.1).
- Form CIQ (Conflict of Interest Questionnaire): Must be filed not later than the 7th business day after the person becomes aware of facts requiring filing (p.8 §11.4).
- Form 1295 (Certificate of Interested Parties): Must be submitted electronically to the Texas Ethics Commission before contract execution; if not provided after written notice, vendor has 10 business days from receipt of notice to cure before the contract becomes voidable (p.8 §13.1–13.2).
- Insurance certificate (general/auto/other): Certificate of insurance specifying all required coverages must be submitted before contract execution; Contractor may not commence work until all required insurance is in place and proof provided (p.11 §25.2; p.17).
- Workers' compensation coverage change notice: Contractor must notify the governmental entity within 10 days after it knew or should have known of any material change affecting coverage of any person providing services (p.15 checklist item (6)).
- ITB protest: Protests regarding ITB process (advertising, deadlines, openings, procedures) must be submitted within 5 working days after the protesting party knows of the occurrence being protested (p.14 §35.1–35.2).
- Anti-lobbying blackout: Applies during the period between the "Bid Close Date" and contract award; exact calendar dates are referenced but not provided in these excerpts (p.13 §33.1).

4. Submission Requirements

- Submission method: - Bids may be submitted either electronically via the City's partner website (Bonfire) or in hard copy; if submitting electronically, no paper documents are to be submitted (p.1). (Note: another section states bids must be submitted via mail/UPS/private courier and fax is not accepted (p.2 §1.6); see Risks for this inconsistency.) - If submitting hard copy, provide one original paper copy to the Director of Purchasing and Contract Management at the specified address, in a sealed envelope clearly marked with solicitation number, title, and due date/time (p.1). - Hard copy delivery methods cited include United States Mail, United Parcel Service, or private courier; fax bids are not accepted (p.2 §1.6). The City assumes no responsibility for late or errant delivery; risk of delivery is on the bidder (p.1, p.2 §1.6). Bid preparation and format - Use only the Bid Submittal forms furnished by the City (p.12 §29.1). - Fill in all blank spaces correctly with prices in numerals; prices must be written in ink or typewritten, distinctly and legibly (p.12 §29.1). - In case of discrepancy between unit price and extended total, the unit price governs (p.12 §29.1). - Bids containing escalation clauses or any condition allowing price changes due to cost increases/decreases in materials, labor, or other items will be rejected and returned without consideration (p.12 §28.1). - An opened competitive sealed bid may not be changed to correct a price error; corrections must be made on the bid form prior to opening (p.12 §§29.1, 29.3, citing Tex. Loc. Gov't Code §252.043(g)). Bid signatures and authority - If bidder is an individual: bid must be signed by the individual or a duly authorized agent (p.12 §29.2). - If a firm/association/partnership: list names and addresses of each member; bid must be signed by a member or authorized person (p.12 §29.2). - If a company/corporation: provide corporate name and business address and have an officer or authorized agent sign (p.12 §29.2). - Powers of attorney authorizing anyone to sign bids must be in writing, properly certified, and submitted with the bid (p.12 §29.2). Bid withdrawal and alteration - Bids may be withdrawn and resubmitted at any time before the scheduled bid opening; after opening, no bid may be withdrawn or altered (p.2 §1.7; p.12 §29.4). - Any alterations made before opening must be initialed by the bidder to guarantee authenticity (p.2 §1.7). Documents to obtain and review before bidding - Plans and specifications: may be purchased from the City's Purchasing and Contract Management Office or

downloaded/viewed at no cost from the Bonfire portal (<https://ci-lubbock-tx.bonfirehub.com/portal/>) (p.2 §1.11). - Contract documents, including Notice to Bidders, Instructions, General and Special Conditions, Specifications, and other documents listed in the contract composition clause, must be carefully examined; bidders are responsible for fully familiarizing themselves with all requirements before submitting a bid (p.6 §6.1; p.12 §30.1). - Bidders may examine contract documents without charge as noted in the Notice to Bidders (p.9 §14.1). Prebid meeting - A nonmandatory prebid Zoom meeting will be held March 11, 2026, 10:00 a.m. (p.2 §2.9). - Attendees will be asked to identify themselves and the prospective bidder they represent (p.2 §2.10). - Attendance is not mandatory, but the City will not be responsible for providing information discussed at the prebid meeting to those who do not attend (p.2 §2.11). Questions, interpretations, and addenda - All requests for additional information, clarification, or to report language that may restrict competition must be submitted in writing; verbal requests are not allowed (p.4 §1.2; p.6 §§5.2–5.3). - Written inquiries must be addressed to: Kiara Morgan, Buyer IV, City of Lubbock, Purchasing and Contract Management Office, 1314 Avenue K, Floor 9, Lubbock, Texas 79401; Fax: 806■775■2164; Email: KMorgan@mylubbock.us (p.4 §1.2). - Requests for interpretation/clarification must be received no later than five (5) calendar days before the bid closing date (p.4 §1.1–1.2; p.6 §§5.2, 6.3). - Only written addenda, amendments, and interpretations issued by the Purchasing and Contract Management Office are binding and become part of the bid documents; the City is not bound by verbal explanations (p.6 §§5.1–5.3). - Bidders must proactively check the online portal for addenda and are strongly urged to check at least 48 hours before the response deadline; the City does not assume responsibility for bidder's receipt of addenda (p.6 §§5.1, 5.4). Site investigation and document discrepancies - Before bidding, each bidder must examine all ITB documents and investigate site conditions; failure to do so does not relieve any obligation (p.6 §6.1–6.2; p.2 §1.12). - If the bidder believes the bid documents contain discrepancies or omissions, it must notify the Purchasing and Contract Management Office in writing at least five (5) calendar days before bid closing. If no such notice is given, the bidder is deemed to understand the work and accept the sufficiency and adequacy of plans/specs and to have included sufficient sums in its bid to complete the work (p.6 §6.3). Qualification information (preaward) - After bids are opened and before award, the City may require from any bidder (p.9 §19.1): - Experience record of jobs completed of similar nature and all work in progress, including bond amounts and percent complete (p.9 §19.1.1). - Sworn statement of current financial condition (p.9 §19.1.2). - Equipment schedule (p.9 §19.1.3). - The recommended contractor may be required to provide a complete list of all similar municipal and nonmunicipal projects (current and completed) for the past three years, including: project descriptions, names of supervisors, types of equipment used, and name(s) of supervisors proposed for this project (p.13 §31.2). Insurance and workers' compensation submissions - Before contract execution, Contractor must submit a certificate of insurance specifying each and all required coverages and naming the City of Lubbock as Additional Insured on auto and general liability on a primary and noncontributory basis, including products and completed operations, plus waiver of subrogation endorsements (p.11 §25.2; p.17; p.15 last paragraph). - Contractor must provide proof of coverage, including workers' compensation, for each subcontractor and copies of all required endorsements (p.11 §25.2; pp.16–17). - Before beginning work, Contractor must provide a certificate of workers' compensation coverage to the City; if coverage expires during the project, new certificates must be provided to the City before expiration (p.15 checklist items (2)–(3); p.16). - For each person or entity providing services on the project, Contractor must obtain and provide to the City: a certificate of coverage prior to work start and a new certificate within seven days after receipt if coverage is extended (p.15 checklist items (4)(A)–(B); p.16). Ethics, conflicts, and disclosures - By signing the bid, bidder certifies that it has not offered or agreed to confer any pecuniary benefit or other thing of value to obtain special treatment or influence any decision related to the bid (p.7 §11.2). - Bidders must not offer or accept gifts or anything of value or enter into any business arrangement with any City employee, official, or agent that could present a conflict of interest (p.7 §11.1). - Conflict of Interest Questionnaire (Form CIQ) under Texas Local Government Code Ch. 176 must be filed with the City Secretary within 7 business days of becoming aware of facts requiring filing (p.8 §11.4). - For applicable contracts under Texas Govt Code §2252.908, a Certificate of Interested Parties (Form 1295) must be completed electronically via the Texas Ethics Commission, signed by an authorized agent, and submitted to the City before contract execution. Failure to submit within 10 business days after written

notice makes the contract voidable (p.8 §§13.1–13.2). Confidentiality and public information - If bidder considers portions of its bid to be privileged or confidential (trade secrets, commercial/financial info), those specific portions must be clearly identified; marking the entire bid as confidential is not allowed (p.7 §§8.1, 8.3). - Under the Texas Public Information Act, the Texas Attorney General or a court, not the City, ultimately determines confidentiality; if a public information request is made, bidder will be notified and must justify its position to the Attorney General (p.7 §8.2, citing Gov't Code §§552.305, 552.110; Local Gov't Code §252.049). - Requests for public records must follow the City's process under Texas Gov't Code §552.234(c), using the specified online link (p.7 §8.4). Use of local resources - Bidders are strongly encouraged to describe in their bid how they will utilize local business resources (p.7 §10.1). ITB protest submissions - Protests of ITB procedures (advertising, deadlines, proposal opening, and other process matters) must be submitted in writing to the Director of Purchasing and Contract Management within 5 working days after the protesting party knows of the action; failure to do so waives the protest (p.14 §§35.1–35.2). Anti■lobbying / contact with City officials - From the Bid Close Date through the Contract Award, bidders and their agents must not directly discuss or promote their bid with any member of the Lubbock City Council or City staff except through City■sponsored inquiries, briefings, interviews, or presentations, or where the City specifically requests such contact (p.13 §33.1). - Violation of this anti■lobbying policy is grounds for rejection of the bidder's bid (p.13 §33.2).

5. Legal, Contractual, Insurance, and Compliance Callouts

- Governing law and authority - Any resulting contract or purchase order is deemed entered into in the State of Texas and governed by Texas law (p.5 §4.5). - No individual from any City using department may legally or financially commit the City to any contract or purchase order unless specifically authorized by the ITB/contract; bidders must rely only on properly authorized City actions (p.5 §4.6). Bid evaluation and award - The City may reject any or all bids, reject individual items, waive immaterial formalities, and accept the offer most advantageous to the City in its sole discretion (p.5 §4.1). - Bids are evaluated first for compliance with specifications; only compliant bids will have price considered (p.5 §4.2). - Unless otherwise specified, award is based on the total bid for Bid Item 1 plus the sum of any alternates or options selected by the City (p.5 §4.1). - In the event of tie bids, preference is given to local bidders; consistent and continued tie bidding may result in rejection and possible anti■trust investigation (p.5 §4.3). - Nonresident bidders: Before awarding to a nonresident bidder, that bidder's price must be lower than the lowest responsible Texas bidder by at least the same margin required for Texas bidders in that nonresident's home state (p.5 §4.4). Contract composition - The executed contract will be a bound document consisting at minimum of: (a) Notice to Bidders; (b) General Instructions to Bidders; (c) Bidder's Submittal; (d) Statutory Bonds (if required); (e) Contract Agreement; (f) General Conditions; (g) Special Conditions (if any); (h) Specifications; (i) Insurance Certificates for Contractor and all subcontractors; and (j) all other documents made available to the bidder for inspection (p.12 §30.1). - Plans and Specifications that are too bulky to bind are incorporated by reference and are legally part of the Contract Documents (p.13 §29.2). Labor, wages, and working conditions - Prevailing wage law: Contractor must comply with Texas Gov't Code Chapter 2258; all workers on public works funded in whole or in part with public funds must be paid not less than the general prevailing per diem wage rate for similar work in the locality, and not less than prevailing rates for legal holidays and overtime (p.2 §3; p.11 §26.1; p.14 §§34.1–34.2). - Wage schedule: A schedule of general prevailing per diem wage rates is included in the contract documents at the Purchasing and Contract Management Office; Contractor must classify employees correctly according to this schedule (p.2 §3; p.11 §26.1; p.12 wage provision). - Penalty for underpayment: Contractor or subcontractor who pays less than the established prevailing wage forfeits to the City \$60 for each worker for each calendar day or part of a day underpaid (p.12 wage provision; p.14 §34.3). - Wage payments and records: Contractor and subcontractors must pay employees in full (less legal deductions) by cash or readily cashable check not less often than once each week, and keep records showing name, occupation, and actual per diem wages for each worker; such records must be open to inspection by City officers and agents at all reasonable hours (p.11 §27.1; p.12 wage provision). - Weekend/holiday work:

Work requiring an inspector is generally not allowed on Sundays or legal holidays except under certain conditions (e.g., essential to City services, delays beyond Contractor's control, or approaching penalty provisions) and only with written permission from the Owner's Representative after three working days' advance notice (p.11 §§26.1.1–26.1.3). - Emergency hazard correction: If a hazardous or dangerous condition to property or life arises from the work, Contractor must immediately commence and continue corrective work regardless of day or time (p.11 §26.2). Non■discrimination, accessibility, and equal opportunity - The City provides that minority and women business enterprises will have equal opportunity to submit bids and will not be discriminated against on grounds of race, color, sex, disability, or national origin in consideration for award (p.2 §4). - The City does not discriminate against persons with disabilities; pre■proposal meetings and proposal openings are accessible. Requests for special assistance must be made at least 48 hours in advance via the Purchasing and Contract Management Office at (806) 775■2572 or by mail to P.O. Box 2000, Lubbock, TX 79457 (p.2 §5). - Bidder agrees to comply with the Fair Labor Standards Act, Equal Employment Opportunity laws, and all applicable federal, state, and local laws, regulations, and executive orders (p.5 §4.5). Conflict of interest, ethics, and disclosures - Conflict of interest (Form CIQ): Vendors must comply with Texas Local Government Code Ch. 176 by filing a Conflict of Interest Questionnaire (Form CIQ) with the City Secretary within 7 business days of becoming aware of facts requiring filing; failure to comply is an offense and constitutes a Class C misdemeanor (p.8 §11.4). - Certificate of Interested Parties (Form 1295): Under Texas Gov't Code §2252.908, certain contracts (those requiring City Council action, valued at \$1M or more, or for services requiring lobbyist registration) require the vendor to file Form 1295 electronically with the Texas Ethics Commission before contract execution and provide the signed form to the City. Failure to provide the form within 10 business days after written notice makes the contract voidable (p.8 §§13.1–13.2). - Ethics/anti■bribery: By signing the bid, bidder certifies it has not and will not offer any pecuniary benefit or thing of value to influence any decision regarding the bid and will not engage in arrangements with City personnel that create conflicts (p.7 §§11.1–11.2). - Anti■lobbying: From Bid Close Date through Contract Award, bidders and their agents must not directly discuss or promote their bid with any member of the City Council or City staff except in City■sponsored processes or where specifically requested by the City; violation can result in rejection of the bid (p.13 §§33.1–33.2). Taxes and permits - Bid prices must include full compensation for all taxes, permits, and similar charges the bidder is or may be required to pay (p.7 §9.1). - The contract is issued by an organization exempt from Texas Limited Sales, Excise and Use Tax under Article 20.04; Contractor must obtain a limited sales, excise, and use tax permit to purchase materials tax■exempt when incorporated into the work (p.9 §20.1; p.10 §20.2). Insurance (general liability/auto/other) and risk - Contractor must procure and carry, at its sole expense and throughout the life of the contract, insurance covering all operations by Contractor and its subcontractors; separate policies may be provided for each subcontractor (p.11 §25.1; p.17). - Insurance must be placed with a company authorized to transact business in Texas and acceptable to the City; coverage above stated minimums is allowed (p.11 §25.1; p.17). - Contractor must submit a certificate of insurance specifying all required coverages before contract execution, naming the City of Lubbock as Additional Insured on auto and general liability on a primary and non■contributory basis, including products and completed operations, and providing a waiver of subrogation in favor of the City; copies of endorsements are required (p.11 §25.2; p.17; p.15 last paragraph). - Contractor must not commence work until all required insurance is obtained and proof of coverage furnished; all policies must provide at least 10 days' advance written notice to the City of cancellation or any material change (p.10 §25.1; p.17). - All required policies must include an agreement by the insurer waiving certain rights (primarily subrogation) in favor of the City; full waiver language is referenced but partially truncated in the excerpts (p.10 §25.1; pp.16–17). Workers' compensation and coverage for all persons providing services - All persons working on or providing services related to the project—including hauling, delivering, labor, transportation, and other related services—must be covered by workers' compensation insurance, regardless of employer or employment status (p.16). - Contractor must: - Provide workers' compensation coverage for all its employees on the project for the duration, with proper classification codes, payroll reporting, and filings (p.15 checklist item (1); p.16). - Provide the City a certificate of coverage before work begins and updated certificates before coverage expires (p.15 checklist items (2)–(3); p.16). - Obtain from each entity/person providing services: (A) a certificate of coverage

before work starts; and (B) a new certificate within seven days after receipt if coverage is extended, and provide these to the City (p.15 checklist items (4)(A)–(B); p.16). - Retain all certificates for the project duration and one year thereafter (p.15 checklist item (5); p.16). - Notify the City in writing (certified mail or personal delivery) within 10 days after it knew or should have known of any material change affecting coverage of any person providing services (p.15 checklist item (6); p.16). - Post required workers' compensation coverage notices at each project site in at least 19■point type in English, Spanish, and any other language common to workers, using commission■provided text without changes (p.15 checklist item (7)). - Contractor must flow these workers' compensation obligations down to all subcontractors and lower■tier contractors by contract, requiring them to similarly provide coverage, certificates, retain records, notify of changes, and pass requirements to their own subcontractors (pp.16–17). Protection of persons, property, and utilities - Contractor bears full responsibility for locating and protecting underground pipelines, utility lines, conduits, and other subsurface structures; any damage must be repaired at Contractor's expense to the City's satisfaction, regardless of information provided by the City (p.10 §21.1). - Contractor must at its own expense provide and maintain barricades, fences, lights, danger signals, and other precautionary measures as necessary or as ordered by the City to protect persons and property and the work until acceptance; any damage to the work resulting from failure of these measures is Contractor's responsibility (p.10 §22.1). - Use of explosives is tightly controlled: written City permission required, no on■site storage, full liability for damage, notice to utilities, and use of utmost care and industry■standard methods (p.10 §§23.1–23.3). Payment, liens, and final acceptance - All payments to Contractor will be made in accordance with the General Conditions of the contract documents (p.9 §15.1). - Prior to final acceptance, the City reserves the right to require Contractor to execute an affidavit that all bills for labor, materials, and incidentals have been fully paid and that there are no pending claims of which Contractor has been notified (p.9 §16.1). - Contractor must protect all work and materials until the City issues its certificate of completion/acceptance; risk of loss remains with Contractor until that time (p.9 §19.1; p.10 §22.1). ITB protest procedures - Protests concerning ITB procedures (advertising, deadlines, proposal opening, and related matters) must be filed in writing with the Director of Purchasing and Contract Management within 5 working days of when the protesting party knows of the action; failure to do so constitutes waiver (p.14 §§35.1–35.2). - Protests regarding staff's recommendation to City Council for award are not subject to this 5■day limitation and may be made to the City Manager; recommendations will be available for public review as permitted by law (p.14 §35.1).

6. Ambiguities, Risks, or Missing Information

- Technical scope missing: The excerpts do not include the actual roof design, materials, roofing system type, details, drawings, or performance criteria (e.g., membrane type, insulation thickness, warranties specific to the roof). Bidders must obtain and review the full plans, specifications, and any addenda from the City/Bonfire to understand and price the technical scope correctly (p.1; p.2 §1.11; p.9 §14.1; p.13 §29.2).
- Submission method inconsistency: Page 1 allows either electronic submission via Bonfire or hard copy (not both), while page 2 §1.6 states bids must be submitted by U.S. Mail/UPS/private courier and does not mention electronic submissions. This inconsistency poses a disqualification risk if misinterpreted; bidders should confirm the controlling instruction and any updates via addenda or directly with Purchasing.
- Insurance details incomplete: Specific coverage types and minimum limits (e.g., dollar amounts for general liability, auto, workers' comp, umbrella, builder's risk), as well as the full waiver language and any additional insured requirements beyond those quoted, are referenced as being in the General Conditions but not provided here (p.10 §25.1; p.11 §25.1; p.17). Bidders must locate and review the full insurance section to assess risk and cost.
- Workers' compensation applicability to all personnel: The documents state that all persons providing services, regardless of status as an employee, must have workers' compensation coverage (p.16). Treatment of independent contractors, owner■operators, and sole proprietors is not fully explained;

bidders should clarify whether all such persons must be covered under the Contractor's policy or show separate coverage.

- Schedule and penalties: While substantial completion is required within 60 days of Notice to Proceed (p.4 §2.1) and the text references approaching "penalty provisions" for delays (p.11 §26.1.2), specific liquidated damages, bonus/penalty structures, or completion milestones are not provided in these excerpts. Bidders must review the General/Special Conditions for detailed schedule-related penalties, which directly affect risk and pricing.
- Warranty breadth and liability limits: The one-year guarantee (p.4 §3.1) requires Contractor to remedy defects and pay for "any and all damages of any nature whatsoever" resulting from defects, and the separate hardware/software/firmware warranties are expressly not subject to any limitation of liability or disclaimers (p.5 §§3.2–3.4). There is no clear limitation of Contractor's aggregate liability in these excerpts, which could represent significant unbounded risk.
- City control over progress: The City reserves the right to require a progress schedule and to direct Contractor to take actions deemed necessary to ensure timely completion (p.4 §2.2), but the nature of such actions, cost responsibility, and dispute resolution mechanisms are not defined here, creating potential schedule and cost overrun risk.
- "Best quality and grade" standard: The requirement that all materials and workmanship be of "the best quality and grade" in addition to meeting minimum specifications (p.9 §17.1) is subjective and may exceed typical industry standards. The criteria the City will use to assess this are not described, increasing the possibility of disputes and rework.
- Protection and risk of loss vs. insurance/force majeure: Contractor is responsible for protecting all work and materials until completion/acceptance (p.9 §19.1; p.10 §22.1), but corresponding builder's risk insurance, force majeure provisions, and risk of loss allocations are not shown. Bidders must review those clauses to understand exposure to events like theft, vandalism, or severe weather.
- Explosives use: If the roof project or related work were to require blasting (unlikely but not ruled out), Contractor bears full liability for all direct/indirect damage and cannot store explosives on site (p.10 §§23.1–23.3). No guidance is given on alternative staging locations or practical implementation, which could materially affect cost and feasibility if blasting becomes necessary.
- Prevailing wage schedule absent: Actual wage rates and job classifications are not reproduced here; bidders must obtain the referenced prevailing wage schedule to estimate labor costs and avoid penalties (p.2 §3; p.11 §26.1; p.12 wage provision; p.14 §34).
- Bonding requirements unclear: The contract composition references "Statutory Bonds (if required)" (p.12 §30.1(d)), but the excerpts do not specify whether performance and payment bonds are required, nor their amounts or conditions. Bidders must locate the bonding section to understand security and cost obligations.
- Form 1295 applicability threshold vs. project size: The estimated project budget is \$275,000 (p.2 §1.10), below the \$1M threshold mentioned in the Form 1295 description (p.8 §13.1), but other triggers (e.g., requirement of City Council vote) could still apply. The excerpts do not explicitly state whether this specific project meets any of those triggers, so bidders should confirm whether Form 1295 is required for this contract.
- Addenda receipt risk: The City explicitly disclaims responsibility for ensuring bidders receive addenda, but addenda are fully binding (p.6 §§5.1, 5.4). Bidders who fail to monitor the portal may bid on outdated documents and be held to revised requirements.
- Anti-lobbying scope: The anti-lobbying rule bars discussing or promoting the bid with Council or staff between bid close and award, but the line between prohibited "promotion" and allowed general business contact is not clearly defined (p.13 §§33.1–33.2). There is risk of inadvertent violation; bidders may need clarification on acceptable communications.

- Qualification standards vague: The City may reject a bidder if not “completely satisfied” with its qualifications, experience, or financial resources (p.13 §31.1; p.9 §19.1). No objective thresholds (minimum years of experience, financial ratios, EMR, etc.) are provided, giving the City broad discretion and creating uncertainty for bidders with non-■standard profiles.
- Inconsistent or truncated clauses: Several clauses (insurance waivers, hardware/software warranty 3.2, and some workers’ comp language) are truncated in these excerpts. The full text may contain additional obligations or clarifications; bidders must locate and review full sections to avoid missing material requirements.
- Exact physical address and instructions for bid delivery: While the office address for inquiries (1314 Avenue K, Floor 9) is provided (p.4 §1.2), the excerpts do not clearly and consistently state the complete physical or mailing address and labelling instructions for hard-■copy bid delivery beyond general references (p.1, p.2 §1.6). Bidders should confirm exact delivery details in the full ITB front pages.
- Form CIQ and Form 1295 timing vs. bid submission: Excerpts state when these forms must be filed relative to awareness of conflicts and contract execution (p.8 §§11.4, 13.1–13.2) but do not clarify whether submission with the bid is required or only prior to award/contract execution; mis-■timing could delay award if not clarified with the City.
- Recordkeeping specifics: While wage and insurance certificate records must be kept and made available, required retention periods (beyond one year after project for insurance certificates) and formats (paper vs. electronic, level of detail) are not fully defined. This may affect compliance and audit risk.
- Electronic submission procedures: Aside from references to Bonfire and recommended upload timing, the excerpts do not specify required file formats, size limits, acknowledgement of receipt, or whether electronic signatures are acceptable. Bidders must consult Bonfire instructions and the full ITB for these details.